

STATE OF NEW YORK

8313--B

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. ANDERSON -- read once and referred to the Committee on Housing -- recommitted to the Committee on Housing in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public housing law, in relation to providing trainings and information to residents regarding resident management corporations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public housing law is amended by adding a new section 402-i to read as follows:

§ 402-i. Resident management corporations. 1. For the purposes of this section, "resident management corporation" means an entity that proposes to enter into, or enters into, a contract to manage one or more management activities of the New York city housing authority. Such resident management corporation shall be made up of residents of the New York city housing authority and shall meet the following requirements:

(a) shall be a non-profit organization validly incorporated under the not-for-profit corporation law;

(b) may be established by more than one resident council if such council:

(i) approves the establishment of the resident management corporation; and

(ii) has representation on the board of directors of such resident management corporation;

(c) shall have an elected board of directors with elections held at least once every three years;

(d) shall have by-laws that:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD05371-05-6

1 (i) require the board of directors to include resident representatives
2 of each resident council involved in establishing the resident manage-
3 ment corporation;

4 (ii) include qualifications to run for office;

5 (iii) include the frequency of elections;

6 (iv) include procedures for recall; and

7 (v) term limits, if desired;

8 (e) shall have voting members of the heads of households and other
9 residents that are at least eighteen years of age and are listed on the
10 lease agreement for a unit represented by such resident management
11 corporation;

12 (f) shall be approved by the resident council board and a majority of
13 the residents if a resident council already exists. If there is no resi-
14 dent council, a majority of the residents of the public housing develop-
15 ment such resident management corporation will represent shall approve
16 the establishment of such resident management corporation; and

17 (g) may serve as both the resident management corporation and the
18 resident council if such resident management corporation meets the
19 requirements of federal laws and regulations for a resident council.

20 2. The New York city housing authority shall provide information and
21 trainings to all residents of such authority's properties regarding the
22 formation of resident management corporations, the requirements of such
23 resident management corporations, and the potential benefits of creating
24 such resident management corporations.

25 § 2. This act shall take effect on the one hundred twentieth day after
26 it shall have become a law. Effective immediately, the addition, amend-
27 ment and/or repeal of any rule or regulation necessary for the implemen-
28 tation of this act on its effective date are authorized to be made and
29 completed on or before such effective date.